

Tentative Rulings and Resolution Review Hearings

August 31, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to addressing the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. – Law & Motion

ASPIRE GENERAL INSURANCE COMPANY VS. KIFF, ET AL.

CASE NUMBER: 25CVG-02055

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 7, 2026 to Plaintiff Aspire General Insurance Company and Counsel Law Office of Todd F. Haines for failure to timely serve. The Complaint in this matter was filed on October 9, 2025. "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). Plaintiff has not filed a Proof of Service of Summons or sought an extension of time to serve the Complaint. Plaintiff did not file a written response to the Order to Show Cause. With no sufficient excuse for failure to timely serve, sanctions are imposed against Plaintiff and Counsel in the amount of \$250. The clerk is directed to prepare the Order of Sanctions. **An appearance by Plaintiff's counsel is necessary on today's calendar to explain the delay.**

BUCHANAN VS. DURLER, III

CASE NUMBER: 25CV-0208923

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 7, 2026 to Plaintiff Sara Buchanan, in pro per, for failure to timely serve. Proof of Service of Summons was filed on August 3, 2026. The Order to Show Cause is **DISCHARGED**. The matter will be on calendar on **Monday, October 12, 2026 at 9:00 a.m. in Department 63** for status responsive pleading or default. Plaintiff is reminded of the timeframes set forth in CRC 3.110.

CAVNAR VS. MODOC COUNTY

CASE NUMBER: 25CV-0209042

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 22, 2026 to Plaintiff Christopher Cavnar, in pro per, for failure to file a proper Proof of Service of Summons. The Complaint in this matter was filed on October 27, 2025. “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). Plaintiff filed a Proof of Service of Summons on December 5, 2025, however, the Proof of Service of Summons does not reflect valid service on any Defendant. Plaintiff did not file a written response to the Order to Show Cause. With no sufficient excuse for failure to timely serve, sanctions are imposed against Plaintiff in the amount of \$250. The clerk is directed to prepare the Order of Sanctions. **An appearance by Plaintiff is necessary on today’s calendar to explain the delay.**

CHANCE, ET AL. VS. STEALTH AUTO RECOVERY

CASE NUMBER: 25CV-0208848

Tentative Ruling on Motions to be Relieved as Counsel: Neama Rahmani from West Coast Trial Lawyers APLC moves to be relieved as counsel for Plaintiffs Douglas Chance and Saundra Martinez. A motion was filed for each Plaintiff.

CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. In particular, CRC 3.1362 requires the use of specific mandatory Judicial Council forms for the Notice and Motion (MC-051) and Supporting Declaration (MC-052). Both forms and the proposed Order (MC-053) must be served on the client and all parties who have appeared in the case at either the current address or the last known address that has been confirmed within thirty days. CRC 3.1362(d). There are proofs of service on file reflecting timely service by mail on Plaintiffs as well as Defendants’ counsel who was served electronically. Counsel was unable to confirm the address used to serve Plaintiffs. However, it appears that counsel has taken reasonable steps to confirm the address.

As to the merits, a declaration must be filed that states in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under CCP § 284(2) is brought instead of filing a consent under CCP § 284(1). Plaintiff’s counsel has provided evidence that there is a breakdown in the attorney-client relationship that prevents continued representation.

The motions are **GRANTED**. The matter will be on calendar on **Monday, November 2, 2026 at 9:00 a.m. in Department 63** for status of counsel. Counsel provided proposed Orders that will be modified by the Court to include the future hearing date. Neama Rahmani from West Coast Trial Lawyers APLC will be relieved upon the filing of the Notices of Entry of Order. Plaintiffs’ counsel is ordered to provide notice to Defendants.

DIVIS VS. SHASTA AREA SAFETY COMMUNICATIONS AGENCY, ET AL.

CASE NUMBER: 26CV-0210924

Tentative Ruling on Demurrer: Defendants Shasta Area Safety Communications Agency aka Shascom-911 (“Shascom”) and Jessica Larmour demur to the Fifth Cause of Action alleged in the Complaint filed by Plaintiff James Divis. Plaintiff opposes the Demurrer.

Meet and Confer. Defendant has provided evidence of sufficient efforts to meet and confer prior to filing the Demurrer.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

The Fifth Cause of Action is for negligent supervision and is alleged only against Defendant Shascom. Defendant demurs to the Fifth Cause of Action on the basis that Plaintiff has failed to state a claim against Shascom. Shascom is a public entity.

Except as otherwise provided by statute:

(a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.

(b) The liability of a public entity established by this part (commencing with Section 814) is subject to any immunity of the public entity provided by statute, including this part, and is subject to any defenses that would be available to the public entity if it were a private person.

Gov. Code § 815

(a) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.

(b) Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability.

Gov. Code § 815.2

Negligent supervision is a common law tort claim. Plaintiff argues that *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal. 4th 861 holds that the negligent supervision claim alleged here is not barred by Gov. Code §§ 815 and 815.2. However, *C.A.* presents an exception, not the rule, as that case dealt with a student suing a school district for negligent supervision. In finding that liability could attach notwithstanding §§ 815 and 815.2, the supreme court found a special relationship that gave rise to duty. The court further held that “Absent such a special relationship, there can be no individual liability to third parties for negligent hiring, retention, or supervision of a fellow employee, and hence no vicarious liability under section 815.2.” *Id.* at p. 877.

There has been no case law presented here that would lead to a finding of a special relationship based on the factual allegations in this case. In each of the cases cited for special relationship, there was some sort of custody or caretaking type relationship. Plaintiff is an adult who is the former employee of Shascom.

Plaintiff further argues that Labor Code §§ 1050 and 1052 form the statutory basis for the negligent supervision claim since those sections impose direct liability against the employer.

Any person, or agent or officer thereof, who, after having discharged an employee from the service

of such person or after an employee has voluntarily left such service, by any misrepresentation prevents or attempts to prevent the former employee from obtaining employment, is guilty of a misdemeanor.

Lab. Code § 1050.

Any person who knowingly causes, suffers, or permits an agent, superintendent, manager, or employee in his employ to commit a violation of sections 1050 and 1051, or who fails to take all reasonable steps within his power to prevent such violation is guilty of a misdemeanor.

Lab. Code § 1052

The Court notes that the First and Second Causes of Action already allege violations of Labor Code §§ 1050 and 1052, respectively, against both Jessica Larmour and Shascom. Defendant argues the Fifth Cause of Action is not pled as relying on either Labor Code § 1050 or § 1052. This is correct. While paragraph 106 of the complaint realleges and incorporates preceding allegations, the allegations of the Fifth Cause of Action do not reference or in any way make it apparent that Labor Code §§ 1050 and 1052 form the statutory basis for the Fifth Cause of Action. The Court finds that, as currently pled, Plaintiff has failed to state a claim for negligent supervision as alleged in the Fifth Cause of Action. Therefore, the Court will sustain the demurrer. Plaintiff has requested leave to amend. While Defendant has requested that leave to amend be denied, the Court is inclined to allow Plaintiff the opportunity to correct the deficiency, if he can.

The Demurrer to the Fifth Cause of Action is **SUSTAINED** with leave to amend. Plaintiff is given 15 days from the date of the notice of entry of order to file a first amended complaint. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant is to prepare the Order.

IN RE: GEBRESILASSIE

CASE NUMBER: 26CV-0210823

Tentative Ruling on Petition for Change of Name: Petitioner seeks to change her name from Leila Belay Gebresilassie to Leila Yasmin Yohannes and to also change the name of her minor daughter. The Certificate of Publication was filed on July 24, 2026. The Court is able to **GRANT** the Petition on behalf of the mother. However, when a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). A proof of service has not been filed indicating that the non-petitioning parent was personally served. As to the minor, the Court intends to **DENY** the Petition. Should Petitioner wish to have time to serve the non-petitioning parent, Petitioner request a future hearing date. Petitioner will be required to obtain an Amended Order to Show Cause with the new hearing date and serve that on the non-petitioning parent at least thirty days prior to the new hearing date. **An appearance by Petitioner is necessary on today's calendar to confirm whether Petitioner would like her Petition granted at this time and whether Petitioner seeks a continuance of the hearing to serve the non-petitioning parent.**

HOWLAND, ET AL. VS. SABET, ET AL.

CASE NUMBER: 25CV-0207803

Tentative Ruling on Motion to Strike: Plaintiffs David Howland and Lori Howland move to strike the Cross-Complaint filed by Defendants Farzad Sabet and Marikit Sabet on May 22, 2026. The Sabet Defendants oppose the motion.

As a preliminary matter, when reviewing this motion, the Court noticed that the clerk set aside the default at issue on February 23, 2026. This was a clerical error. While the parties discussed setting aside the default at the Mandatory Settlement Conference on February 23, 2026, no such order was made. The Court orders that the default was set aside effective April 6, 2026, which is the date the Court executed the Order to Set Aside Default. The clerk is directed to correct the date on the default set aside.

Meet and Confer. Plaintiffs have provided sufficient evidence of their attempt to meet and confer prior to filing the motion. Even if efforts were insufficient, that is not grounds to deny the motion. CCP § 435.5(a)(4).

Merits. A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal. App. 3d 24. Pursuant to CCP § 436(b), a Court may strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the Court.

In this matter, Default was entered on July 14, 2025. On March 25, 2026 the parties submitted a Stipulation and Order. The Order was executed on April 6, 2026 and reads, in relevant part “Defendants FARZAD SABET and MARIKIT SABET shall file and serve their answer, and will file no other responsive pleadings to the complaint, such as demurrer or motion for judgment on the pleadings, within twenty (20) days of the date of this Order.” The Order does include any wording about a Cross-Complaint. Defendants filed an Answer and Cross-Complaint on May 22, 2026. This is long past the 20 days permitted by the Order. However, Plaintiffs only seek to strike the Cross-Complaint, not the Answer.

The Cross-Complaint was not filed in conformity with the Court’s Order dated April 6, 2026. The plain language of the Order permitted that only an Answer be filed. The Court notes that Defendants used the Opposition to this motion to seek leave to file a Cross-Complaint. That is improper. Defendants will need to bring their own noticed motion seeking leave to file a Cross-Complaint.

The Motion to Strike is **GRANTED**. The Cross-Complaint filed by Defendants Farzad Sabet and Marikit Sabet is ordered **STRICKEN**. The clerk is directed to strike the Cross-Complaint filed May 22, 2026. Plaintiffs did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are to prepare the Order.

JONES, ET AL. VS. TAYLOR

CASE NUMBER: 22CV-0201290

Tentative Ruling on Motion for Relief from Order and to Set Aside Judgment of Dismissal Pursuant to CCP § 473(b): Plaintiffs Tiffanie Jones, Kim Harmon and Stephen Huston seek relief pursuant to CCP § 473(b). Defendant Sally Taylor did not respond to the motion. Plaintiffs filed two proofs of service. In the Proof of Service by First-Class Mail, the address used for service is not listed on pleadings in this matter, is not counsel’s address of record in this matter, and is not the address listed for counsel on the State Bar’s website. Additionally, the service by mail was untimely. CCP § 1005(b). However, the Proof of Electronic Service is in proper form and reflects timely service using the email address listed for Defendant’s counsel on the pleadings in this matter. Based on the Proof of Electronic Service, the Court finds that this motion was properly noticed.

The Order from which Plaintiffs seek relief is dated May 11, 2026. The Order granted Defendant’s Motion to Terminate Case which was heard on that same date. The motion was properly noticed. However, Plaintiffs did not file an Opposition. Counsel for Plaintiffs, Daniel Henderson, appeared at the hearing and argued the merits of the motion. The Court adopted the tentative ruling, which was to grant the motion. Granting of the motion resulted in a dismissal of Plaintiffs’ Complaint. A Motion for Reconsideration was filed on May 19, 2026. This motion was denied on June 1, 2026 for being untimely filed and there being insufficient proof that Defendant received notice of the Motion for Reconsideration. On August 3, 2026 the Court entered judgment in favor of Defendant.

In support of the motion at issue today, Eric Alan Berg provided a declaration stating that he is the principal of the Law Office of Berg & Associates and as the principal, he is responsible for supervision of this matter. Mr. Berg failed to ensure that the Motion for Reconsideration was timely filed and properly noticed. Mr. Berg also

failed to ensure that a written opposition was filed in the Motion to Terminate Case. Mr. Berg provides that these omissions were the result of his own oversight and not the result of any willful conduct, bad faith, or defiance of the discovery statutes.

CCP § 473(b) has both a discretionary provision and a mandatory provision. Plaintiffs move under the mandatory provision.

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. However, this section shall not lengthen the time within which an action shall be brought to trial pursuant to Section 583.310.

CCP § 473(b).

Plaintiffs have presented evidence that their attorney's mistake, inadvertence, and neglect resulted in a dismissal being entered. This motion was filed within the required six-month period for bringing a motion. Therefore, the relief requested is mandatory. While it is unclear from the moving papers the exact relief requested, based on the proposed Order attached to the moving papers, it appears that Plaintiffs are seeking a denial of the Motion to Terminate Case. However, the neglect of counsel was failure to file a written Opposition. Allowing Plaintiffs to file a written Opposition would not necessarily result in the Motion to Terminate Case being denied. Therefore, the only relief Plaintiffs are entitled to is the opportunity to file a written Opposition to the Motion to Terminate Case.

The Court will set aside the Judgment entered on August 3, 2026 and reset the Motion to Terminate Case for hearing, which will allow Plaintiffs to file a written opposition. However, this will not occur until Defendant is compensated for legal fees and costs reasonably incurred based on Plaintiff's counsel's neglect.

(1) Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following:

(A) Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party.

(B) Direct that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund.

(C) Grant other relief as is appropriate.

(2) However, where the court grants relief from a default or default judgment pursuant to this section based upon the affidavit of the defaulting party's attorney attesting to the attorney's mistake, inadvertence, surprise, or neglect, the relief shall not be made conditional upon the attorney's payment of compensatory legal fees or costs or monetary penalties imposed by the court or upon compliance with other sanctions ordered by the court.

CCP § 473(c).

Defense counsel may submit an affidavit detailing the attorney fees and costs incurred for any work done on the matter after May 11, 2026. The Court intends to order that Plaintiff's counsel pay all reasonable legal fees and costs incurred due to Plaintiff's counsel's neglect in this matter. Because this is not a default or default judgment,

CCP § 473(c)(2) does not apply. Given the history of monetary sanctions in this matter that have not been paid by Plaintiffs and the long history of noncompliance, the Court will set the reasonable legal fees and costs and require payment by Mr. Berg (not Plaintiffs) prior to setting aside the judgment and resetting the Motion to Terminate. When the hearing is set, the Court will allow Plaintiffs to file an Opposition and Defendant to file a Reply. The Court will then hear the Motion to Terminate Case on the merits.

The Motion for Relief from Order and to Set Aside Judgment of Dismissal Pursuant to CCP § 473(b) is **GRANTED**. Relief is conditioned on compensation to Defendant for legal fees and costs reasonably incurred in an amount to be determined by the Court. Plaintiffs did not submit a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are ordered to submit an order consistent with the Court's ruling.

An appearance by both counsel is necessary in order to determine when Defendant will be able to submit an affidavit regarding legal fees and costs incurred after May 11, 2026. Once that sum has been determined and paid by Mr. Berg, the Court will set aside the Judgment and set the Motion to Terminate Case for hearing.

JORDAN, II VS. SITE WORK SOLUTIONS

CASE NUMBER: 25CV-0209057

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff Charles David Jordan II and Counsel JS Abrams Law on July 22, 2026 for failure to timely serve the Complaint in violation of CRC 3.110(b). Counsel filed a declaration explaining the reason for the delay. The Order to Show Cause is **DISCHARGED**. The matter will be on calendar on **Monday, October 26, 2026 at 9:00 a.m. in Department 63** for status of service.

Tentative Ruling on Motion to be Relieved as Counsel: Navid Kanani of JS Abrams Law PC moves to be relieved as counsel for Plaintiff Charles David Jordan II.

CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. In particular, CRC 3.1362 requires the use of specific mandatory Judicial Council forms for the Notice and Motion (MC-051) and Supporting Declaration (MC-052). Both forms and the proposed Order (MC-053) must be served on the client and all parties who have appeared in the case. CRC 3.1362(d). "The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." CRC 3.1362(d)(2). Counsel has not made reasonable efforts to locate a current address for Plaintiff. Additionally, there is no proof of service for the proposed Order, which is required to be served on Plaintiff.

The Motion to be Relieved as Counsel is **DENIED** without prejudice for lack of proper notice to Plaintiff. The Court is unable to modify the proposed Order submitted. Plaintiff's counsel is ordered to submit an Order consistent with the Court's ruling.

ROWEN VS. NORTHERN VALLEY CATHOLIC SOCIAL SERVICE, INC.

CASE NUMBER: 25CV-0209519

Tentative Ruling on Motion for Stay of Proceedings: Defendant Northern Valley Catholic Social Services, Inc. moves to stay these proceedings pending the outcome of *Thompson vs. Northern Valley Catholic Social Services, Inc.*, Butte County Case No. 24CV02468. Plaintiff Robert Rowen received proper notice of the motion and did not file an Opposition.

Request for Judicial Notice. Defendant requests the Court take judicial notice of the Complaint filed July 24, 2024 and the Second Amended Complaint filed in *Thompson vs. Northern Valley Catholic Social Services, Inc.*, Butte County Case No. 24CV02468. Both requests are granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. Under this Doctrine of Exclusive Concurrent Jurisdiction, when two or more courts have subject matter jurisdiction over a dispute, the court that first asserts jurisdiction assumes it to the exclusion of the others. *Franklin & Franklin v. 7-Eleven Owners for Fair Franchising* (2000) 85 Cal. App. 4th 1168. In this matter, *Thompson* was filed on July 24, 2024, which is seventeen months prior to this matter which was filed on December 29, 2025. The cases assert the same wage and hour causes of action and PAGA claim, with *Thompson* asserting one additional cause of action. The class definition for both is nearly identical. Whether the doctrine applies to PAGA actions was specifically addressed in *Shaw v. Superior Court* (2022) 78 Cal. App. 4th 245 and the Court of Appeal held that the doctrine applies to PAGA actions.

Plaintiff did not oppose the motion. The Court has not been made aware of any steps taken to coordinate the actions. The Court finds that the Doctrine of Exclusive Concurrent Jurisdiction applies to this matter and exercises its discretion to stay the *Rowen* matter pending the outcome of the *Thompson* matter.

The motion is **GRANTED**. This matter is stayed pending final adjudication of *Thompson vs. Northern Valley Catholic Social Services, Inc.* Butte County Case No. 24CV02468. When a judgment or dismissal occurs in the *Thompson* matter, Defendants must notify Plaintiff and the Court within twenty days. All future hearing dates are vacated. The matter will be on calendar on **Monday, March 1, 2027 at 9:00 a.m. in Department 63** for status of the *Thompson* matter. The parties are to file status statements no less than five court days prior to the review hearing. Defendant provided a proposed Order that will be modified to reflect the Court's ruling. Defendant is to provide notice to Plaintiff of this ruling and the future hearing date.

SATHER VS. SATHER

CASE NUMBER: 26CV-0210352

Tentative Ruling on Demurrer and Motion to Strike: Defendant Barry Sather demurs to all causes of action alleged in the Complaint filed by Plaintiff Matthew Sather and moves to strike certain portions from the Complaint. Plaintiff was properly noticed and did not file an Opposition.

Meet and Confer. Defendant provided sufficient evidence of meet and confer efforts prior to filing the Demurrer and Motion to Strike.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e). The Court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff's allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604.

A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal. App. 3d 24. It is proper for the Court to strike any irrelevant, false or improper matter. CCP § 436(a).

First Cause of Action – Unjust Enrichment. The statute of limitations for an unjust enrichment claim is based on the underlying wrong. When based on an oral promise, as alleged here, an unjust enrichment claim is subject to the two year statute of limitations set forth in CCP § 339, subdivision 1. Plaintiff alleges in ¶ 30.c that the promise was made in June of 2018. Plaintiff further alleges in ¶ 15-17 that the oral promise was revoked in early January 2023. Because this Complaint was filed on April 13, 2026, the First Cause of Action was filed outside the applicable statute of limitations and the demurrer is **SUSTAINED** without leave to amend.

Second Cause of Action – Breach of Oral Contract. The statute of limitations for an oral contract is two years per CCP § 339 subdivision 1. As noted above, the alleged oral promise was revoked in early January 2023. Therefore the Second Cause of Action was filed outside the applicable statute of limitations and the demurrer is **SUSTAINED** without leave to amend.

Third Cause of Action – Promissory Estoppel. The statute of limitation for promissory estoppel based on an oral promise is two years. *Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2016) 6 Cal. App. 5th 1207. The oral promise is alleged to have been revoked in early January 2023. The Third Cause of Action was filed outside the applicable statute of limitations and the demurrer is **SUSTAINED** without leave to amend.

Fourth Cause of Action – Fraud. Agreements to sell real property must be in writing. CCP § 1971. Court have recognized an exception to the statute of frauds in cases of fraud, however, in order to prevail on action for a fraudulent promise, a plaintiff must produce evidence of the promisor's intent to mislead. *Tenzer v. Superscope* (1985) 39 Cal. 3d 18, 30. Plaintiff does not allege an intent to defraud when the oral promises were made in 2014 and 2018. Therefore, Plaintiff has failed to plead the elements required for the alleged fraud claim and the demurrer to the Fourth Cause of Action is **SUSTAINED**. Plaintiff did not respond to the Demurrer and has therefore not sought leave to amend or explained how amendment could cure the defect. Absent an appearance by Plaintiff and an explanation for how the defect can be cured, leave to amend is not granted.

Fifth Cause of Action – Constructive Trust. An action seeking to establish a constructive trust is subject to the limitation period of the underlying substantive right. *Day v. Greene* (1963) 59, Cal. 2d 4040. The underlying substantive right is based on an oral contract, therefore, CCP § 339 subdivision 1 applies. The Complaint was filed more than two years after the revocation of the oral promise, therefore, Fifth Cause of Action was filed outside the applicable statute of limitations and the demurrer is **SUSTAINED** without leave to amend.

Sixth Cause of Action – Retaliatory Eviction. Retaliatory eviction occurs when a landlord retaliates against the tenant in specific circumstances.

If the lessor retaliates against the lessee because of the exercise by the lessee of the lessee's rights under this chapter or because of the lessee's complaint to an appropriate agency as to tenantability of a dwelling, and if the lessee of a dwelling is not in default as to the payment of rent, the lessor may not recover possession of a dwelling in any action or proceeding, cause the lessee to quit involuntarily, increase the rent, or decrease any services within 180 days of any of the following:

- (1) After the date upon which the lessee, in good faith, has given notice pursuant to Section 1942, has provided notice of a suspected bed bug infestation, or has made an oral complaint to the lessor regarding tenantability.
- (2) After the date upon which the lessee, in good faith, has filed a written complaint, or an oral complaint which is registered or otherwise recorded in writing, with an appropriate agency, of which the lessor has notice, for the purpose of obtaining correction of a condition relating to tenantability.
- (3) After the date of an inspection or issuance of a citation, resulting from a complaint described in paragraph (2) of which the lessor did not have notice.
- (4) After the filing of appropriate documents commencing a judicial or arbitration proceeding involving the issue of tenantability.
- (5) After entry of judgment or the signing of an arbitration award, if any, when in the judicial proceeding or arbitration the issue of tenantability is determined adversely to the lessor.

In each instance, the 180-day period shall run from the latest applicable date referred to in paragraphs (1) to (5), inclusive.

CCP § 1942.5(a).

Plaintiff alleges the Sixth Cause of Action that Plaintiff disclosed to Defendant that Defendant had sexually abused Plaintiff and that after this disclosure, Defendant retaliated by filing an unlawful detainer action. The alleged conduct does not fall within the scope of CCP § 1942.5. No other reason for the retaliation is alleged. Therefore, Plaintiff has failed to plead the elements required for the retaliatory eviction claim and the demurrer to the Sixth Cause of Action is **SUSTAINED**. Plaintiff did not respond to the Demurrer and has therefore not sought leave to amend or explained how amendment could cure the defect. Absent an appearance by Plaintiff and an explanation for how the defect can be cured, leave to amend is not granted.

Motion to Strike. Defendant moves to strike paragraphs 10a, 18a, 19-22, and paragraphs 1-13 of the Sixth Cause of Action. Paragraph 10a forms the basis for the retaliatory eviction claim alleged. Paragraph 18a relates to Plaintiff's mother who is not named as a party in this matter. Nothing in paragraph 18 forms an element or basis for any alleged cause of action. There is nothing improper in paragraphs 19-22. Paragraphs 1-13 form the basis of the retaliatory eviction claim. Only paragraph 18a will be ordered stricken.

The Demurrer is **SUSTAINED** without leave to amend except as noted above for the Fourth and Sixth Causes of Action. Absent an appearance and the showing necessary for leave to amend, leave to amend will also be denied as to the Fourth and Sixth Causes of Action. The Motion to Strike is **GRANTED** as to paragraph 18a and **DENIED** as to the balance. Defendant submitted a proposed Order that will be modified to reflect the Court's ruling. Absent leave to amend being granted, the clerk is directed to dismiss the Complaint, vacate any future dates, and close the file.

SWAIN VS. MARUTI WVRVL OIL INC, ET AL.

CASE NUMBER: 23CV-0202166

Tentative Ruling on Motion for Final Approval of Class Action Settlement: Plaintiff Stephanie Swain brought this wage and hour class action and Private Attorneys General Act ("PAGA") matter against several Defendants, including Defendants Maruti WVRVL Oil, Inc. Marti East Ave, Inc., Jagdeep Sing Randhawa, and Prabhjot Singh Randhawa. Plaintiff and Defendants Maruti WVRVL Oil, Inc. Marti East Ave, Inc., Jagdeep Sing Randhawa, and Prabhjot Singh Randhawa have settled the matter for a gross settlement of \$1,950,000. The Court granted approval of the PAGA settlement and preliminary approval of the class action settlement on May 4, 2026. The matter is now before the Court for final approval of the class action settlement. As a preliminary matter, not all named Defendants have appeared in this action. Those who have not appeared are considered non-settling Defendants. The Court previously ordered that all non-settling Defendants must be dismissed when judgment is entered.

Final Approval of the Settlement. The parties agreed to settle the matter for \$1,950,000. The final breakdown of the settlement is as follows:

Total Settlement Amount	\$1,950,000.00
Proposed Attorneys' Fees 33 1/3%	-\$650,000.00
Litigation Costs and Expenses	-\$17,620.02
Settlement Administration Costs	-\$14,5000.00
Class Representative Enhancement	-\$10,00.000
PAGA Claim Settlement Allocation	\$80,000.00
Payment to Labor and Workforce Development Agency (LWDA) (75%)	(-\$60,000.00)
Payment to Class Members (25%)	(\$20,000.00)
Settlement Monies Remaining to be Disbursed to Class Members and Aggrieved Employees	\$1,197,879.98

The settlement class is comprised of 504 individuals. Individual payments are based on a pro rata amount of pay periods worked during the class period. The highest individual settlement is estimated to be \$17,381.35, the lowest is \$106.63, and the average is estimated to be \$2,346.37. No claim form was necessary to participate in the settlement. Unless a class member opted out, they will receive a payment based on the time worked as calculated by the settlement administrator.

In deciding whether a class settlement is sufficiently fair, adequate and reasonable to warrant granting final approval, the Court considers several factors, including: 1) the amount offered in settlement; 2) the strength of plaintiff's case and the risks inherent in the continued litigation; 3) the extent of discovery completed and the state of the proceedings when the settlement was reached; 4) the complexity, expense, and likely duration of the litigation in the absence of settlement; 5) the experience and views of class counsel; and 6) the reaction of class members to the proposed settlement. *Wershba v. Apple Computer* (2001) 91 Cal. App. 4th 224, 244-45. A presumption of fairness exists where (1) settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is low. *Nordstrom Com'n. Cases* (2010) 186 Cal. App. 4th 576, 581.

The factors here weigh in favor of granting final approval. Plaintiff has complied with the terms of the Court's Order preliminarily approving of the settlement. In granting preliminary approval, the Court found that Plaintiff's assessment of the value of the class claims was sufficient for the Court to determine that the settlement amount was within the range of reasonableness. Plaintiff has shown that Class Counsel is highly experienced in wage and hour class action litigation, including settlement, and that before entering into the proposed settlement, counsel thoroughly investigated and engaged in discovery regarding the factual and legal issues in this lawsuit. Plaintiff has further demonstrated that the parties engaged in arm's length bargaining by participating in mediation before an experienced mediator. Lastly, the overall reaction of the class to the proposed settlement was overwhelmingly positive. Notice was provided to 85% of the class members and not one class member objected or chose to excluded themselves from the settlement. With the Court already having preliminarily approved this settlement, Plaintiff having complied with the terms of the Court's May 4, 2026 Order, and no objection or opposition being raised, there does not appear to be any reason why the Court should not now grant final approval of the settlement.

Attorneys' Fees. Plaintiff is requesting attorneys' fees of 33.33% the settlement amount, or \$650,000, and argues that the requested fees are reasonable under the common fund doctrine and the lodestar cross-check. Under the common fund doctrine, "when a number of persons are entitled in common to a specific fund, and an action brought by a plaintiff or plaintiffs for the benefit of all results in the creation or preservation of that fund, such plaintiff or plaintiffs may be awarded attorney's fees out of the fund." *Serrano v. Priest* (1977) 20 Cal. 3d 25, 34. Under the lodestar method, a base fee amount is calculated from a compilation of time reasonably spent on the case and the reasonable hourly compensation of the attorney. This base amount is then potentially adjusted using multipliers based on various factors. *Id.* at 48.

The California Supreme Court case of *Laffitte v. Robert Half Intern. Inc.* (2016) 1 Cal. 5th 480 is instructive for evaluating the reasonableness of the instant attorneys' fees request. *Laffitte* held that when a settlement agreement creates a non-reversionary fund, the trial court may calculate attorneys' fees as a percentage of the common fund. There, the Court affirmed an attorneys' fees award of 33.33% of a common fund and found that there are recognized advantages of the percentage method over the lodestar method, "including relative ease of calculation, alignment of incentives between counsel and the class, a better approximation of market conditions in a contingency case, and the encouragement it provides counsel to seek an early settlement and avoid unnecessarily prolonging the litigation." *Id.* at 503. The trial court may cross-check a common fund attorneys' fees award with an abbreviated lodestar calculation for the purpose of "bringing a measure of the time spent by counsel into the trial court's reasonableness determination." *Id.* at 505. Lodestar is calculated by multiplying reasonable attorney time spent by a reasonable hourly rate. *PLCM Group v. Drexler* (2000) 22 Cal. 4th 1084, 1095. A reasonable

hourly rate is based upon the prevailing rate for similar work in the pertinent geographic region. *Id.* However, the lodestar calculation is not meant to override the common fund percentage determination and does not impose an absolute maximum or minimum on the fee award. *Laffitte, supra*, 1 Cal. 5th at 504-505. Only when the multiplier calculated by lodestar cross-check is extraordinarily high or low should the court consider adjusting the percentage to bring the multiplier within a justifiable range. *Id.* at 505.

Class Counsel provided evidence that 916.70 attorney hours were spent working on the case thus far. Based on the rates suggested by Class Counsel, the lodestar is \$807,115. Multipliers can range from 2 to 4 or even higher. *Wershba v. Apple Computer, Inc.* (2001) 91 Cal. App. 4th 224, 255. While the rates suggested for Class Counsel are on the higher end, the total fee requested represents a multiplier of .82. The Court finds that the attorneys' fee of \$650,000 requested here is reasonable.

Costs and Expenses. Plaintiff seeks reimbursement for costs and expenses of \$17,620.02. The Court preliminary approved costs up to \$50,000. The incurred costs appear to be appropriate. The Court finds that the \$17,620.02 in costs and expenses incurred by Plaintiff's counsel are reasonable and were necessary to the prosecution of this action.

Enhancement Award. Plaintiff requests a class representative enhancement award of \$10,000 for Plaintiff Stephanie Swain. This amount was expressly stated in the class notice. The Court considers the following factors in determining whether to award the class representative an enhancement award: (1) the risk to the class representative in commencing suit, both financial and otherwise; (2) the notoriety and personal difficulties encountered by the class representative; (3) the amount of time and effort spent by the class representative; (4) the duration of the litigation and; (5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation. *In re Cellphone Fee Termination Cases* (2010) 186 Cal. App. 4th 1380, 1394-95, citing *Van Vracken v. Atlantic Richfield Co.* (1995) 901 F. Supp. 294, 299. Plaintiff estimates that she has spent 35-40 hours assisting her attorneys with the lawsuit. Plaintiff's efforts have resulted in a monetary benefit to the class members. Plaintiff's individual settlement is estimated to be \$2,345.95 which just over the anticipated average. Plaintiff took a risk in bringing the litigation and also signed a general release that the rest of the class did not sign. There has been no objection by any member of the class to the enhancement award. The Court finds that the \$10,000 class representative enhancement award to Stephanie Swain is warranted.

Settlement Administration Costs. The Court authorized Phoenix Settlement Administrators as the settlement administrator with an estimated cost of up to \$20,000, however, the actual request is for \$14,500. Kevin Lee from Phoenix provided a declaration that detailed the work done by Phoenix as well an invoice for the work done. The Court finds \$14,500 to be reasonable for settlement administration costs.

Settlement Distribution. The Court notes that the settlement is being funded in two installments. The first installment of \$975,000 was paid on July 15, 2026 and the second installment of \$975,000 will be paid on May 15, 2027. Per FN. 2 on page 3 of the Memorandum of Points and Authorities, all class members will receive two checks of equal value. It appears from this that all disbursements (Counsel for fees and costs, Plaintiff for class representative enhancement award, Phoenix for settlement administration costs, and the LWDA portion of the PAGA settlement) will also be paid in two equal checks. The Court is aware that all checks expire after 180 days. Therefore, it appears likely that the first round of checks may expire prior to the second checks being issued. The moving papers do not address a mechanism for these funds to reach class members. In order for the Court to approve the settlement, any uncashed checks from the first payment will need to be added to the second check. The Court also notes that counsel has noted a 90 day check cashing deadline before providing all uncashed funds to the *cy pres* beneficiary, Legal Services of Northern California. Banks will generally accept a check up to the 180 day mark even if the check contains a notation that the check is void after 90 days. The check cashing deadline will need to be no less than 180 days from the date of issuance of the second check. Given the complexity

caused by the settlement funding in two installments, no funds may be distributed to the *cy pres* beneficiary until ordered at the compliance hearing.

Assuming that Plaintiff can accommodate the paragraph above titled Settlement Distribution, the Court intends to **GRANT** the motion. Plaintiff submitted a Proposed Order and Judgment that will be modified to reflect the Court's ruling. The Court retains jurisdiction pursuant to CRC 3.769(h). The Court sets the matter on **Monday, December 13, 2027 at 8:30 a.m. in Department 63** for a hearing on compliance. Prior to the compliance hearing, Plaintiff is expected to provide evidence that the first round of class member settlement checks were mailed, that any checks uncashed after 180 days were either included in the second check or sent again, and the number of class members who still have uncashed checks 180 days from date of the issuance of the second checks along with the total for the uncashed checks. Plaintiff should also provide evidence of all other distributions including Class Counsel, Plaintiff, Phoenix, and the LWDA. Evidence shall be filed no later than December 3, 2027.

WELTY, ET AL. VS. REYES BARRERA, ET AL.

CASE NUMBER: 25CV-0208430

Tentative Ruling on Motion to Compel Further Responses to Special Interrogatories, Set One: Plaintiff filed two discovery motions on August 3, 2026 that were both noticed for hearing today. On August 26, 2026, Plaintiff filed a Notice of Withdrawal as to the Motion to Compel Further Responses to Request for Production of Documents. The Court notes that attached to the Notice of Withdrawal, was a Notice of Withdrawal for this motion. Because the clerk is not able to separate documents, this motion was not formally withdrawn and is still on calendar today. Because it is apparent that Plaintiff is no longer seeking a ruling on this motion, absent an appearance by Plaintiff and a request otherwise, the Court will drop the matter from calendar.

WRIGHT, ET AL. VS. OROS BORJON, ET AL.

CASE NUMBER: 25CV-0208213

Tentative Ruling on Motion to Appoint Referee and Order Partition by Sale: Plaintiff Patricia L. Wright, Trustee of the Patricia L. Wright Trust DTD July 8, 2020 and Plaintiff Deborah Lee Hammerich, Trustee of the 2005 Amendment and Restatement of the 2000 Deborah Lee Hammerich Revocable Trust DTD September 28, 2020 move for partition by sale and appointment of a referee. Defendants Jose Fernando Oros Borjon and Ivonne Oros Borjon, Trustees of the Borjon Family Trust DTD January 19, 2019 filed a Response to the Motion.

An interlocutory judgment ordering partition by sale was entered on April 20, 2026. A hearing on fair market value (FMV) was held on July 10, 2026 and the Court found that the FMV is \$292,500. The Minutes from the July 10, 2026 hearing were served on all parties by mail on July 10, 2026 which served as the required notice under CCP § 874.317(a). The forty-five days have now elapsed with no party giving notice that they intend to buy out the other tenants. Because Plaintiffs have requested partition by sale, CCP § 874.317(d)(3) applies and the Court must send notice to all parties of the fact that no tenant provided notice of an intent to buy out and that the matter will proceed to partition under CCP §§ 874.318 and 874.320. Should this tentative ruling become final, the clerk is directed to serve today's minutes on the parties in order to constitute the required notice.

The property at issue is a single-family home. Therefore, partition in kind is not feasible and partition by sale will occur under CCP § 874.318(b). The Court finds that the sale shall be an open-market sale. CCP § 874.320(a). The list price shall be \$292,500. Pursuant to CCP § 874.320(b), absent an objection, the Court intends to appoint Drew Wahlund of Wahlund and Co. Realty as the disinterested real estate broker. Plaintiffs suggest setting the reasonable commission at no more than 5.5% of the sale price. As no contrary evidence has been provided by either party, the Court will set the commission at 5.5% absent argument otherwise.

Pursuant to CCP § 873.010(a), the Court shall appoint a referee to sell the property. The only proposed referee is Aaron W. Moore, who the Court knows to be a local attorney specializing in real estate law. There appears to

be no objection from Defendants. Absent an objection or further proposal, the Court intends to appoint Aaron W. Moore as the referee to act without bond with reasonable compensation being set at \$400 per hour. Defendants have requested that the referee's time be limited to only those tasks necessary for the sale of the home. The Court places an initial ten-hour limit on referee time. If further referee time is needed, either party may submit a request in writing. The Court will consider the request with no need for a hearing so long as the other party has been provided three days' notice that the request is being made. The Court will approve additional time if good cause is shown.

Plaintiffs request that the referee be authorized to accept an offer within 95% of the list price of \$292,500. This is a reasonable request and will be granted. All other aspects of the sale will be per the Code of Civil Procedure.

The motion is **GRANTED** as noted above. Plaintiffs provided a proposed Order that will be modified to reflect the Court's ruling. The review hearing scheduled for September 8, 2026 is vacated. The matter will be on calendar on **Monday, October 26, 2026 at 9:00 a.m. in Department 63** for status of the sale. The parties are ordered to provide the Court with separate or joint status statements no later than 5 court days prior to the hearing. Plaintiffs are ordered to provide notice of the October 26, 2026 review hearing.

9:00 a.m. – Review Hearings

ALPINE BLUE VS. HURLEY, ET AL

CASE NUMBER: CVCV21-0198057

This matter is on calendar for review regarding status of judgment or dismissal. The matter has not been dismissed. The Court continued this matter from June 29, 2026 and ordered that Plaintiff and any party that filed a Cross-Complaint file a status statement no less than five court days prior to today. No status statements have been filed. **An appearance by all active parties is necessary on today's calendar. Failing to appear may result in the issuance of an Order to Show Cause Re: Monetary Sanctions.**

CALIFORNIA CAPITAL INSURANCE COMPANY VS. BROWN

CASE NUMBER: 25CV-0207412

This matter is on calendar for review regarding status of judgment/dismissal. Notice of Settlement of Entire Case was filed on May 28, 2026, which requires that the matter be dismissed within 45 days. However, the parties filed status statements indicating that the settlement has not been finalized because the parties are working to resolve related personal injury claims. The matter is continued to **Monday, November 9, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The Court intends to dismiss the matter without prejudice on November 9, 2026 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the November 9, 2026 hearing. **No appearance is necessary on today's calendar.**

CHANCE, ET AL. VS. STEALTH AUTO RECOVERY

CASE NUMBER: 25CV-0208848

This matter is on calendar for review regarding status of the case. The Court granted Plaintiffs' counsel's Motions to be Relieved as Counsel on this morning's Law & Motion calendar. The review hearing is continued to **Monday, November 2, 2026 at 9:00 a.m. in Department 63** for status of counsel. **No appearance is necessary on today's 9:00 a.m. calendar.**

DUNNE, ET AL. VS. POLARIS INDUSTRIES INC., ET AL.

CASE NUMBER: CVPO21-0198252

This matter is on calendar for confirmation of purchase of annuities. The Declaration of Russell Reiner provides information that the annuities have been purchased. The clerk is directed to process the Request for Dismissal that was received on July 8, 2026. Following the processing of the Request for Dismissal, the file will be closed. **No appearance is necessary on today's calendar.**

KNIGHT VS. HIGHWAY SPECIALTY COMPANY INC

CASE NUMBER: 24CV-0206254

This matter is on calendar for review regarding status of arbitration. Plaintiff filed a status statement informing the Court that arbitration is scheduled for December 16, 2026. The matter is continued to **Tuesday, January 19, 2027 at 9:00 a.m. in Department 63** for status of arbitration. The parties are ordered to file a status statement no less than five court days prior to the hearing. **No appearance is necessary on today's calendar.**

WELTY, ET AL. VS. REYES BARRERA, ET AL.

CASE NUMBER: 25CV-0208430

This matter is on calendar for review regarding status of service and responsive pleading. The matter is still not at issue. As noted on July 6, 2026, there is no Proof of Service of Summons on file for Defendant Jose Gilberto Reyes Barrera. Proof of Service of Summons was filed on June 12, 2026 as to Doe 3 Rolling Freight, LLC and no responsive pleading has been filed. There is no responsive pleading on file for the Cross-Complaint filed by Shasta Green, Inc. The parties were ordered to file a status statement at least five court days prior to today. Only Shasta Green, Inc filed a status statement, however, it does not address why the Cross-Complaint is not at issue. **An appearance by all parties is necessary on today's calendar to discuss when the matter will be at issue.**

WHITRED HOLDINGS, LLC, ET AL. VS. THE MCCONNELL FOUNDATION

CASE NUMBER: CVCV21-0197415

This matter is on calendar for review regarding status of the case. The matter was most recently on calendar on June 29, 2026. The matter continued to today because the parties filed a joint status statement informing the Court that they had agreed on a referee and needed time to finalize the stipulation. Nothing has been filed since. **An appearance is necessary on today's calendar.**